

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 16, 2018

Honorable Nancy Stark
Judge of the Superior Court
County of Contra Costa
725 Court Street
Martinez, CA 94553

Re: Frazier, Rashad Ali
CDC No.: BG8364
Case No.: 5-161462-7(02)
Date of Sentence: 7/6/2018

Dear Honorable Nancy Stark:

The purpose of this letter is to provide the court with authority to resentence Rashad Ali Frazier pursuant to Penal Code Section 1170, subdivision (d)¹. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

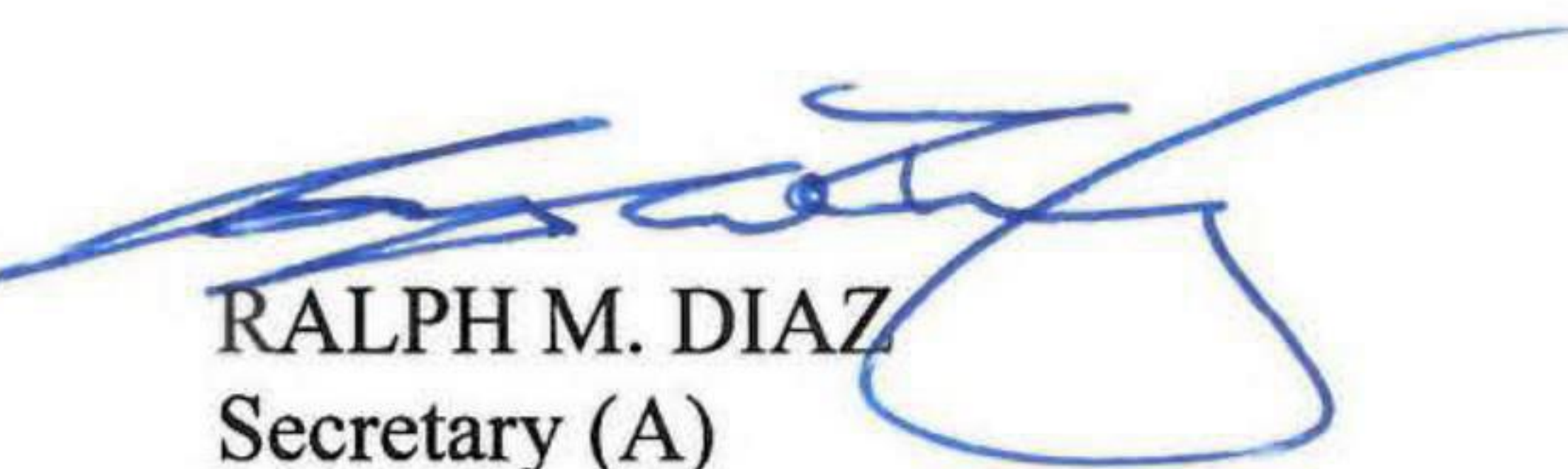
Inmate Frazier was sentenced in 2018, and was convicted of section 245, subdivision (b), ASSAULT WITH SEMI-AUTOMATIC FIREARM. The trial court sentenced inmate Frazier on 7/6/2018. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Frazier's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

¹ All further statutory references are to the Penal Code unless otherwise indicated.

Based on the above facts and case law, it appears that inmate Frazier's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled² and that he be resentenced³ in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Jill C. Fannin, Contra Costa County Presiding Judge
Contra Costa District Attorney
Public Defender

² Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8)).

³ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.

B68364

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: CONTRA COSTA		B68364	FILED JUL 06 2018 CLERK OF THE COURT SUPERIOR COURT OF CALIFORNIA COUNTY OF CONTRA COSTA By: J. Jackson, Deputy Clerk
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RASHAD ALI FRAZIER	DOB: 12-05-93	CASE NUMBER 5-161462-7 (02)	
AKA: CII NO.: A29770923	BOOKING NO.: ☐ NOT PRESENT		
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			
DATE OF HEARING 07-06-18	DEPT. NO. 20	JUDGE NANCY STARK	
CLERK D. VILLASPIN	REPORTER M. POPPER, CSR# 12816	PROBATION NO. OR PROBATION OFFICER NONE	☒ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE RICHARD EWENSTEIN, D.D.A.		COUNSEL FOR DEFENDANT JENNIFER WELCH, D.P.D. ☐ APPOINTED	

1. Defendant was convicted of the commission of the following felonies:

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	PLEA				YRS.	MOS.
8	PC	245(b)	ASSAULT WITH A SEMIAUTOMATIC FIREARM	2015	07-06-18			X	M			6	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
8	PC 12022.5(a)	4	PC 12022.7(a)	3	PC 186.22(b)(1)(B)	5	12 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ to prison per PC 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or PC 186.1 enhancement ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$300.00 per PC 1202.4 (b) forthwith per PC 2085.5 if prison commitment \$300.00 per PC 1202.45 suspended unless parole is revoked. \$ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4 (f): ☐ \$ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund.

* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive.

☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Operations Assess.: \$40 per PC 1465.8. ☒ Conviction Assess.: \$30 per GC 70373. ☒ Other: \$176 per specify PROBATION REPORT FEE

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't's Race / National Origin BLA

8. Other orders (specify): PROHIBITED PERSONS RELINQUISHMENT FORMS PACKET PROVIDED TO DEFENDANT; PAROLE ADVISEMENT GIVEN; HARVEY WAIVER ENTERED AS TO VICTIMS LOUISVILLE, THOMAS, FLORES AND CHP;

9. TOTAL TIME IMPOSED: 18 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: Served forthwith:

11. ☐ This sentence is to run concurrent with (specify):

12. Registration Required: ☐ per (specify code section):

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
7-6-18	1129	982	☐ 2933 ☒ 2933.1 ☐ 4019	DMH CDCR CRC ☐ ☐ ☐

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE **D. VILLASPIN** DATE **7-6-18**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.